Paper #5 - The Death Penalty

Criminal punishment is considered the “justice” part of the criminal justice system. It’s based on theories about what purpose punishment serves and how it supposedly protects society. In theory, the goal is to reduce or eliminate crime, but in practice, punishment often ignores the broader systemic reasons why people commit crimes in the first place. Instead, it relies on a narrow, individualistic view of justice. There are five widely recognized theories of punishment: incapacitation, deterrence, retribution, rehabilitation, and restoration.

The theory of incapacitation argues that punishment prevents future crime by physically removing offenders from society, usually through incarceration. The goal is public safety. But the problem with this theory is that it assumes we can accurately predict who will commit future crimes and ignores the deeper factors that lead to criminal behavior in the first place.

The theory of deterrence is based on the idea that punishment discourages crime through fear of consequences. It includes general deterrence, meant to discourage the public by making an example of punished individuals, and individual deterrence, which aims to discourage the individual offender from committing another crime. This theory assumes people are rational decision-makers, but that often isn’t the case. It overlooks the influence of poverty, trauma, mental illness, and other structural factors that shape behavior.

The theory of retribution views punishment as a form of moral accountability, offenders deserve to suffer in proportion to the harm they caused. This theory is about achieving fairness and balance, with fixed sentences tied to offense severity. It’s rooted in ideas like “an eye for an eye.” But retribution often blurs the line between justice and revenge, and it justifies suffering without doing anything to address the root causes of crime.

The theory of rehabilitation focuses on reforming offenders so they can return to society as law-abiding citizens. This can include access to education, therapy, drug treatment, and job training. The idea is that people can change, and punishment should support that. But in practice, rehabilitation is rarely prioritized. Prisons are underfunded, harsh, and often make reentry harder, not easier.

The theory of restoration is about repairing the harm caused by crime, both to the victim and the community. It emphasizes accountability, healing, and reconciliation. Practices like restorative justice meetings, restitution, and community service aim to repair relationships rather than just inflict punishment. This model sounds ideal, but it's hard to apply in serious cases, and not every victim wants to participate.

In my view, none of these theories justify the use of the death penalty. Permanent removal from society through incarceration already satisfies the goal of incapacitation, without taking a life. The death penalty also fails under deterrence, there is no credible evidence that it deters crime more effectively than life imprisonment. Retribution is the most commonly cited justification, but tying justice to state-sanctioned killing crosses the line into revenge, especially in a system riddled with racial and socioeconomic bias. No jury can be truly neutral, and sentencing people to death based on imperfect processes is inherently arbitrary. This is exactly what the Supreme Court identified in Furman v. Georgia, which held that the death penalty is unconstitutional when applied in ways that are degrading, arbitrary, disproportionate, or unnecessary. The death penalty violates all four of those standards. And because it is irreversible, any error in the investigation, trial, or sentencing process means there's no chance to correct that injustice. In a system that so often fails to protect the most vulnerable, execution can never be considered justice.